

22VECV01096 22VECV01096

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-16

Motion: MOTION FOR (1) RECONSIDERATION OF ORDERS AND APPLICATION OF LE FRANCOIS v. GOEL (2005) 35 CAL.4TH 1094; AND (2) CONTINUANCE OF TRIAL DATE

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Case Number: 22VECV01096 Hearing Date: July 16, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TANNETTE GATES,

an individual,

Plaintiff,

vs.

WARNER CENTER CONDOMINIUMS, a

California nonprofit mutual benefit

corporation; ROSS MORGAN & COMPANY,

INC., a California corporation; AFSANEH

SAFAEI, an individual; ARASH SAFAEI, an

individual; HIPPO ANALYTICS, INC., a

Delaware Corporation; TOPA INSURANCE

COMPANY, a California corporation;

CHETAN CHANDRAKANT RANE, an

individual; and ABIDYA BAHL, an

individual; DOES 3-20, inclusive,

Defendants.

CASE NO: 22VECV01096

[TENTATIVE]

ORDER RE:

MOTION

FOR (1) RECONSIDERATION OF ORDERS AND APPLICATION OF LE FRANCOIS v. GOEL
(2005) 35 CAL.4TH 1094; AND (2) CONTINUANCE OF TRIAL DATE

Dept. W

8:30 a.m.

July 16, 2026

[TENTATIVE] ORDER: The Court DENIES

Plaintiff's Motions for Reconsideration. The Court also DENIES Plaintiff's
Request for a Trial Continuance, and DENIES their Request for Entry of Default
against Defendants Warner Center Condominiums and Ross Morgan & Company,
Inc.

Background

This

case arises out of an exploding kitchen pipe. Plaintiff is Tannette Gates, the
resident of a condominium building. In December of 2021, a pipe burst in the
unit above hers, causing significant water damage to Plaintiff's residence.
Plaintiff alleges that Moving Defendant, Topa Insurance Company, failed to
properly investigate her insurance claim as well as wrongfully denied her

claim.

On May 10, 2024, Plaintiff filed for bankruptcy under Chapter 7. On June 21, 2024, the Court ordered a stay of this case due to Plaintiff's bankruptcy filing. On December 3, 2025, this stay was lifted.

On January 12, 2026, Defendant Topa Insurance Company moved to compel initial responses to Form Interrogatories, Set One, from Plaintiff. On March 16, 2026, this Court granted the motion. The Court declined to impose monetary sanctions at that time. However, the Court scheduled an OSC Re: Discovery Sanctions and an OSC Re: Outstanding Verified Discovery Responses by Plaintiff for April 15, 2026. At the April 15 OSC, this Court ordered \$500 in sanctions against Plaintiff.

Meanwhile, on March 20, 2026, Defendant Topa Insurance Company moved to compel Plaintiff's deposition. On April 22, 2026, this Court granted the motion, ordered Plaintiff to appear for deposition, and awarded Defendant \$2,617.46 in sanctions.

On April 27, 2026, this Court also granted an Ex Parte Application for Protective Order filed by Defendants Ross Morgan & Company, Inc., Warner Center Condominiums.

Similarly, on April 20, 2026, Defendants Ross Morgan & Company, Inc. and Warner Center Condominiums moved to compel initial Form Interrogatories, Special Interrogatories, Requests for Production, and moved to Deem RFAs Admitted from Plaintiff. On May 5, 2026, this Court granted all of these motions, and ordered Plaintiff pay \$1,755.00 in discovery sanctions.

Now, Plaintiff moves this Court to reconsider their April 15, April 22, April 27, and May 5, 2026, rulings. Additionally, Plaintiff requests continuance of the trial date, and entry of default against Defendants Warner Center Condominiums and Ross Morgan & Company, Inc.

Discussion

i)

Motions for Reconsideration

First, Plaintiff moves this Court to reconsider the following rulings:

1) The April 15, 20,26

Minute Order awarding \$500 in monetary sanctions.

2) the April 22, 2026,

Minute Order awarding \$2,617.46 in monetary sanctions against Plaintiff, payable to Defendant, Topa Insurance Company's counsel, and granting Topa's motion to compel Plaintiff's deposition.

3) The April 27, 2026,

Minute Order granting WCC/RMC's Ex Parte Application for Protective Order.

4) The May 5, 2026, Minute

Order granting the motions to compel, the motion to deem RFAs admitted, and \$1,755.00 in monetary sanctions.

(Mot. for

Reconsideration, pp. 2:5-4:11.)

Under CCP § 1008, "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may within 10 days after service. . . make application . . . to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (CCP § 1008(a).)

a) Untimely Requests

First, the Court notes that three of these four requests are untimely. CCP § 1008 states that a motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order." (CCP § 1008(a).) Plaintiff filed this motion on May 14, 2026. (Mot. for Reconsideration, p. 1.) Thus, this motion is only timely as to orders served May 4, 2026, or later. Here, the April 15 order was served on Plaintiff on April 16, 2026. (Notice of Ruling, 4/16/26.) The April 22 order was served on Plaintiff on April 22, 2026. (Notice of Ruling, 4/22/26.) Finally, the April 27 order was served on Plaintiff on April 28, 2026. (Notice of Ruling, 4/28/26.) Therefore, this motion is untimely as to all three of these orders. Thus, the

motion fails as to these three orders.

b) May 5, 2026, Order

The one order without a timeliness issue is the May 5, 2026, Minute Order granting Defendants Ross Morgan & Company, Inc. and Warner Center Condominiums' motions to compel, the motion to deem RFAs admitted, and \$1,755.00 in monetary sanctions.

Under California case law, this Court can only reconsider a motion when presented with, "new or different facts, circumstances, or law." (Gilberd v. AC Transit (1995) 32 Cal. App. 4th 1494, 1500.) Here, Plaintiff presents no new facts, circumstances, or law.

Instead, Plaintiff argues that this order should be reconsidered for three reasons. First, Plaintiff argues that the order deeming RFAs admitted should be considered because Plaintiff served substantially compliant responses to the RFAs before the hearing on the motion. (Mot. for Reconsideration, p. 8:6-22.) This argument falters because Plaintiff also raised it in their Opposition to the original Motion to Deem RFAs Admitted. (Opp. Re: RFAs, 5/1/26, p. 15:8-20.) There, the Court dismissed Plaintiff's argument, because she did not include any evidence to support her assertion that she had properly responded to the requested RFAs. (See, Ibid.) In the instant motion, Plaintiff provides a declaration, stating that she served substantially compliant responses to the requested RFAs. (Gates Decl. ¶ 19.) Given Plaintiff's history of discovery abuses, the Court is skeptical of the veracity of this declaration. Moreover, Defendants provide their own declaration, stating that they never received any RFA responses. (English Decl. ¶ 16.) Given this dispute, the Court is willing to reserve its ruling on this issue until after further discussion at the hearings. However, the Court's tentative ruling is that Plaintiff has failed to show any new or different facts, circumstances, or law that would justify the reconsideration of the May 5, 2026, motion.

Second, Plaintiff argues that this Court's order was internally contradictory. Specifically, Plaintiff asserts that the Court both orders Plaintiff to both produce the RFAs, while also deeming them admitted. (Mot. for Reconsideration, p. 9: 15-24.) Plaintiff's argument is mistaken. This Court did not order the production of RFA while also deeming them admitted. The Court granted the Motion to Deem RFAs Admitted, while also ordering Plaintiff to provide code

compliant responses to the remaining discovery requests. (Minute Order 5/5/26.)

There is nothing contradictory about the Court's previous order, and thus there is no basis for reconsideration on these grounds.

Third, Plaintiff

asserts that this Court improperly ordered Plaintiff to pay sanctions to Defendants' law firm, rather than Defendants themselves. (Mot. for Reconsideration, p. 9: 26-28.) Notably, Plaintiff cites to no case law to suggest that this is improper. (Id. pp. 9:26-10:5.) Instead, Plaintiff cites to CCP § 2023.030, the general sanctions statute, which includes no language about this topic. (Ibid.) Once again, Plaintiff is mistaken. It is very common for sanctions orders to be paid to a party's attorney, rather than the party themselves. Thus, this is not a basis for reconsideration of this order.

Given that none of

these arguments have merit, the Court TENTATIVELY DENIES Plaintiff's Motion for Reconsideration as to the May 5, 2026, order compelling discovery and sanctions, pending further discussion at the hearings.

ii)

Entry of Default

In addition to her requests for reconsideration, Plaintiff also uses this motion to request entry of default against Defendants Warner Center Condominiums and Ross Morgan & Company, Inc. (Mot. for Reconsideration, p. 11:3-11.) Plaintiff asserts that neither of these defendants have submitted any responsive pleadings in this case. (Ibid.)

Plaintiff is mistaken. These defendants filed a Motion to Strike on April 24, 2026, which is scheduled for July 22, 2026. Under CCP § 435(c), "[i]f a party serves and files a notice of motion to strike without demurring to the complaint, the time to answer is extended and no default may be entered against that defendant, except as provided in Sections 585 and 586." (CCP § 435(c).)

Thus, the Court cannot enter default against Defendants Warner Center Condominiums and Ross Morgan & Company, Inc.

iii)

Trial Date Continuance

Finally, Plaintiff uses this motion to request a one-year continuance of the trial date. (Mot. for Reconsideration, p. 13:8-9.)

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. (CRC Rule 3.1332(c).) The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance. (Id. [emphasis added].) The Court may look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; and (6) whether trial counsel is engaged in another trial. (See generally, CRC 3.1332(d)(1)-(11).) Additionally, factors for the Court to consider include: a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; the proximity of the trial date; whether all parties have stipulated to a continuance; and any other fact or circumstance relevant to the fair determination of the motion or application. (CRC Rule 3.1332(c-d).)

Here, Plaintiff argues that the current trial date, September 14, 2026, makes it impossible for Plaintiff to conduct discovery as to eight separate defendants. (Mot. for Reconsideration, p. 12:15-24.) Additionally, Plaintiff highlights that this issue is compounded by the fact that Defendants have yet to file any responsive pleadings in this case. (Ibid.)

The Court does not find that Plaintiff has shown good cause for a continuance. First, the Court does not find that Plaintiff has engage in "diligent efforts" in litigating this case. The vast majority of the issues Plaintiff points to in this motion were caused by Plaintiff's own inaction or delay. For example, it is Plaintiff who has been the subject of multiple motions to compel discovery over the past few months. (Minute Order, 3/22/26; Minute Order, 4/22/26; Minute Order, 5/5/26.) Additionally, the only discovery Plaintiff served on Defendant Topa Insurance was grossly excessive and was limited via protective order on April 24, 2026. (Martino Decl. Ex. D.) Plaintiff was also ordered to limit and re-serve these discovery requests but has yet to do. (Martino Decl. ¶ 7.) This lack of responsiveness illustrates that Plaintiff has not worked diligently to pursue this case.

Further evidence of Plaintiff's lack of diligent efforts is the fact

that this case is just under four years old. (Compl. p. 1.) Notably, this case was stayed for 1.5 years due to Plaintiff's bankruptcy. This means, Plaintiff still had 2.5 years to litigate this case, and has made no progress. More importantly, a continuance of a year would put this case beyond the "five year rule." (CCP § 583.310.) Thus, Plaintiff requests too long of a continuance.

Moreover, this case is not so factually complex as to warrant an extra year of litigation. This is a habitability case that arises out of a kitchen pipe that burst in the unit above Plaintiff's apartment, causing significant water damage to Plaintiff's residence, as well as an alleged failure by Defendant Topa to properly investigate Plaintiff's insurance claim.

Additionally, it is inaccurate to say that no defendants have filed responsive pleadings. Defendants Topa Insurance Company and Afsaneh Safaei both filed Answers on 2/15/24 and 11/1/23, respectively.

Finally, the Court notes that the parties have not stipulated to this continuance.

For all these reasons, the Court finds that Plaintiff has failed to establish good cause supporting the continuance of the trial date. Therefore, the Court DENIES Plaintiff's request for a continuance.

Conclusion

The Court DENIES Plaintiff's Motions for Reconsideration. The Court also DENIES Plaintiff's Request for a Trial Continuance, and DENIES their Request for Entry of Default against Defendants Warner Center Condominiums and Ross Morgan & Company, Inc.

IT

IS SO ORDERED, _____ TO GIVE NOTICE.

July 15, 2026

Judge of the Superior Court